Intergovernmental Agreement between Maricopa County on behalf of the Maricopa County School Superintendent's Office and Maricopa County Regional School District for Educational Enterprise Resource Planning

1.0 PARTIES

This Intergovernmental Agreement (IGA) provides a binding agreement between the Maricopa County School Superintendent's Office (hereafter referred to as "MCSS"), and **Maricopa County Regional School District** (hereafter referred to as "the School District"), collectively "the Parties", for Educational Enterprise Resource Planning (ERP) licensing, hosting, maintenance, and support of Tyler Technologies, Inc.'s School ERP Pro (hereafter referred to as the "ERP System"). Maricopa County and the School District are authorized to enter into this IGA under A.R.S. §11-952 and §15-342(13) for the purposes of exercising joint powers or contracting for services.

2.0 PURPOSE

This IGA outlines the responsibilities of each of the parties to manage the ERP System of record as part of the MCSS ERP System Consortium. The Parties agree to cooperate and assist each other in meeting the mutual obligations and duties of each office because it is good public policy and benefit the citizens of Maricopa County.

3.0 DEFINITIONS

3.1 MCSS ERP System Consortium – is defined as school districts who have entered into an agreement with MCSS to purchase their ERP software licensing and have their ERP System hosted as detailed in this document.

3.2 ERP System – is defined as the software licensing and associated hosted interfacing applications, as well as technical support, that function as the financial system of record for school districts participating in the MCSS ERP System Consortium.

4.0 TERM OF AGREEMENT

This IGA is for five (5) years, beginning July 1, 2024, and ending June 30, 2029, unless terminated earlier by the Parties as set forth herein.

5.0 RESPONSIBILITIES OF THE PARTIES

5.1 MCSS Responsibilities:

5.1.1 Ensure that the ERP System is kept current on software updates. Not all released updates apply to or affect MCSS hosted districts. Some minor releases may be skipped or delayed.

5.1.2 Ensure that the ERP System is current with supported 3rd party products that it requires.

5.1.3 Maintain the ERP System hardware in good working order and provide sufficient disk space to allow ready access to at least 7 years of historical School District data.

5.1.4 Conduct non-critical software updates outside of normal business hours. Provide School District a minimum 48-hour notice, via email or other notification, of scheduled outage. Critical updates may require a shorter notice depending on the severity of the issue.

5.1.5 Back up all School District data nightly and keep data for a period of at least 15 days before overwriting or deleting. Store monthly backup files for a period of 12 months. Store yearly backups to accommodate any applicable Public Records Retention Schedules. Provisional databases are not backed up due to their temporary nature.

5.1.6 Inform School District when any action taken by MCSS results in the modification of School District data.

5.1.7 Protect School District data against unauthorized access, following best practices of data security.

5.1.8 Allow contracted software vendors access to requested data for the purpose of resolving technical issues in the course of providing support.

5.1.9 Maintain ERP System's Identity Provider (Active Directory) and security.

5.1.10 Provide the School District with necessary instructions, documentation, and licenses to ensure that the School District users can connect to the ERP System.

5.1.11 Provide support services outlined and attached hereto as Attachment 1, Exhibit D.

5.1.12 Invoice the School District for software licensing, hosting, maintenance, and support as outlined in Section 15.0 of this IGA.

5.2 **The School District Responsibilities:**

5.2.1 Provide MCSS with proper authorization for all user account updates for access to the ERP System.

5.2.2 Inform MCSS of changes related to the termination of key personnel or consultants with access to the ERP System in a timely manner.

5.2.3 Provide MCSS key application support personnel and contracted vendor with needed access to School District's ERP system and data for the purpose of resolving technical issues in the course of providing support.

5.2.4 Maintain and manage Users and User Roles in the ERP System as applicable.

5.2.5 Maintain and manage all local security in the ERP System as applicable.

5.2.6 Maintain accuracy and integrity of all data within their District's databases.

5.2.7 Comply with all requests from MCSS made in good faith related to processes or procedures to ensure data integrity and smooth operations.

5.2.8 Provide Internet connectivity and compatible equipment for all School District users of the ERP System.

5.2.9 Attend training as needed to remain current on third-party software and processes.

5.2.10 Pay MCSS within 30 days based on invoices received and as outlined in Section 15.0 of this IGA. Failure to pay could result in termination of this agreement and the School District's ERP system access, licensing, hosting, maintenance, and support. Disputed fees and expenses in all terminations must have been submitted in coordination with MCSS as invoice disputes in accordance with Section F (2) of the LICENSE AND SERVICES ADDENDUM (Attachment 1).

6.0 EMPLOYMENT

6.1 The employees providing support shall be MCSS employees, and MCSS will be responsible for payment of the employees' salaries and benefits.

6.2 For purposes of A.R.S. §23-1022 only, the employees shall be deemed to be employees of both MCSS and the School District, although MCSS shall be solely responsible for the payment of workers' compensation benefits. Both MCSS and the School District shall post a notice pursuant to A.R.S. §23-906, in substantially the following form:

All employees are hereby further notified that they may be required to work under the jurisdiction or control of or within the jurisdictional boundaries of another public agency pursuant to an intergovernmental agreement or contract, and under such circumstances they are deemed by the laws of Arizona to be employees of both public agencies for the purposes of workers' compensation.

7.0 TERMINATION

7.1 This IGA is subject to cancellation in accordance with the provisions of A.R.S. §38-511.

7.2 In the event conflict arises, the Parties agree to make every effort to reconcile conflicts and make reasonable provisions to ensure neither party will suffer as a consequence of conflict.

7.3 Either party may terminate this IGA any time upon delivering a written notice of termination to the other party three months (3) in advance of the requested date of termination. Such notice shall be given by personal delivery or by Registered or Certified mail.

7.4 This IGA may be terminated by mutual written agreement of the parties specifying the termination date therein.

8.0 AMENDMENTS

The Parties may amend this IGA only by written amendment signed by both Parties.

9.0 INCORPORATION OF DOCUMENTS

9.1 The following are to be attached to and made part of this Contract:

9.1.1 Attachment 1 — Contract by and between Maricopa County and Tyler Technologies, Inc.

10.0 NOTICES

Communication and details concerning this IGA shall be directed to the following contract representatives:

Maricopa County:
Heather Mock
Asst. Superintendent of Econ. Mgmt.

Office of the Maricopa County
School Superintendent
4041 N. Central Ave, Suite 1100
Phoenix, Arizona 85012
heather.mock@maricopa.gov
602-506-2068

School District:
Irina Lutz
Executive Director of Finance and Operations
Maricopa County Regional School District
800 W. Adams St.
Phoenix, AZ 85007
irina.lutz@mcrsd.org
602-769-1504

11.0 EMPLOYMENT DISCLAIMER

11.1 This IGA is not intended to constitute, create, give rise to, or otherwise recognize a joint venture agreement, partnership, or other formal business association, or organization of any kind, and the rights and obligations of the Parties shall be only those expressly set forth in this IGA.

11.2 The Parties agree that there will be no discrimination as to race, sex, religion, color, age, creed, or national origin in regard to obligations, work, and services performed under the terms of any contract ensuing from this engagement. The Parties will comply with Executive Order No. 11246, entitled “Equal Employment Opportunity”, and as amended by Executive Order No. 11375, as supplemented by the Department of Labor Regulations (41 CFR, Part 60).

12.0 GENERAL INDEMNIFICATIONS

To the extent allowable by law, each party (as “Indemnitor”) agrees to indemnify, defend, and hold harmless the other party (as “Indemnitee”) from and against any and all claims, losses, liability, costs, or expenses (including reasonable attorneys’ fees) (hereinafter collectively referred to as “Claims”) arising out of bodily injury (including death) of any person or property damage, but only to the extent that such Claims which result in vicarious/derivative liability to the Indemnitee, are

caused by the act, omission, negligence, misconduct, or other fault of the Indemnitor, its officers, officials, agents, employees, or volunteers.

13.0 COMPLIANCE WITH APPLICABLE LAWS

13.1 Each party shall comply with all applicable laws, ordinances, Executive Orders, rules, regulations, standards, and codes of the federal, state, and local governments whether or not specifically referenced herein. Specifically, the following apply:

13.1.1 Unless exempt under Federal law, both Parties shall comply with Title VII of the Civil Rights Act of 1964, as amended, the Age Discrimination in Employment Act, and State Executive Order No. 75-5, as updated in State Executive Order No. 99-4, which mandates that all persons, regardless of race, color, religion, sex, age, national origin, or political affiliation, shall have equal access to employment opportunities. Both Parties shall comply with the Rehabilitation Act of 1973, as amended, which prohibits discrimination in the employment of qualified persons because of physical or mental disability. Both Parties shall comply with the requirements of the Fair Labor Standards Act of 1938, as amended.

13.1.2 Both Parties shall comply with Title VI of the Civil Rights Act of 1964, which prohibits the denial of benefits of, or participation in, contract services on the basis of race, color, or national origin. Both Parties shall comply with the requirements of Section 504 of the Rehabilitation Act of 1973, as amended, which prohibits discrimination on the basis of disability, in delivering contract services; and with Title II of the Americans with Disabilities Act, and the Arizona Disability Act, which prohibit discrimination on the basis of physical or mental disabilities in the provision of contract programs, services, and activities.

14.0 VERIFICATION REGARDING COMPLIANCE WITH A.R.S. §23-214 AND FEDERAL IMMIGRATION LAWS AND REGULATIONS

14.1 By entering into this IGA, the Parties represent and warrant compliance with the Immigration and Nationality Act (8 U.S.C. §§ 1101, *et seq.*) (INA) and all other Federal and State immigration laws and regulations related to the immigration status of their employees. The Parties shall obtain statements from any Subcontractors certifying compliance and shall furnish the statements to the Department upon request. These representations and warranties shall remain in effect throughout the term of this IGA. The Parties and any Subcontractors shall also maintain Employment Eligibility

Verification forms (I-9), as required by the U.S. Department of Labor's Immigration Reform and Control Act of 1986 (Pub. L. No. 99-603), for all employees performing work under this IGA. I-9 forms are available for download at USCIS.GOV.

14.2 The Parties warrant that they are in compliance with A.R.S. §41-4401 (E-Verify requirements) and further acknowledge:

14.2.1 That the Parties and its Subcontractors, if any, warrant their compliance with all Federal immigration laws and regulations that relate to their employees and their compliance with A.R.S. §23-214; and shall keep a record of the verification for the duration of the employee's employment or at least three (3) years, which is longer;

14.2.2 That a breach of a warranty under subsection 14.1 above shall be deemed a material breach of this IGA and the County may immediately terminate this IGA without liability; and

14.2.3 That the County and any contracting government entity retains the legal right to inspect the papers and employment records of any party or Subcontractor employee who works on this IGA to ensure that the party or Subcontractor is complying with the warranty provided under subsection 14.1 above and that the party agrees to make all papers and employment records of said employee(s) available during normal working hours in order to facilitate such an inspection.

15.0 PAYMENT

15.1 MCSS shall invoice and receive reimbursement from the School District within 30 days for the following costs calculated from a combination of software licensing and support, School District user count, ADM, and MCSS support staff:

15.1.1 The cost for the School District's ERP System annual software licensing—Fiscal year 2025 (7/1/2024-6/30/2025) costs will be **$9,089.51,** plus any applicable taxes. Fees for fiscal years 2026 through 2029 shall be subject to increases of no more than five percent (5% year over year.

15.1.2 The costs for MCSS to host and publish the ERP System to be accessed over the Internet and costs associated with MCSS support employees—Fiscal year 2025 (7/1/2024-6/30/2025) costs will be

$5,363.43. Fees for fiscal years 2026 through 2029 shall be subject to increases of no more than five percent (5%) year over year.

15.2 The School District shall obtain and fund their connection to the Internet.

16.0 CONFLICT WAIVER

The Parties to this IGA acknowledge that they are aware that the Civil Services Division of the Maricopa County Attorney's Office (Civil Division) may be chosen as the attorney for other Parties to this agreement, and the signing party acknowledges that it is aware of a potential conflict of interest, and it waives any claim of conflict of interest, which may arise by virtue of Civil Division's representation of other Parties to this agreement.

17.0 COMPLETE AGREEMENT

This IGA contains the full and final agreement of the Parties and supersedes any prior agreement or understandings between the Parties, either written or verbal, dealing with the same subject matter.

FOR AND ON BEHALF OF MARICOPA COUNTY:

_____
Maricopa County School Superintendent

_____
Date

_____
Chairman, Board of Supervisors

_____
Date

ATTEST:

_____
Clerk, Board of Supervisors

_____
Date

Pursuant to A.R.S. §11-952, legal counsel has determined that this Intergovernmental Agreement is within the powers and authority granted under the laws of the State of Arizona.

_____
Attorney for Maricopa County

_____
Date

FOR AND ON BEHALF OF SCHOOL DISTRICT:

_____
School District Representative

_____
Date

_____
Attorney for School District

_____
Date

CONTRACT Educational Enterprise Resource Planning 240128-IGA

This contract ("Agreement" or "Contract") is entered into the 8th day of August, 2024 by and between Maricopa County ("County" or "Client"), a political subdivision of the State of Arizona, and Tyler Technologies Inc., a Delaware corporation ("Contractor" or "Tyler"), for constituent school districts of the County to continue the licensing of or access to and maintenance and support of Tyler's proprietary education-focused Enterprise Resource Planning (ERP) system known as School ERP Pro.

1.0 CONTRACT TERM

This Contract is for a term of five (5) years, beginning on July 1, 2024 ("Effective Date") and ending on June 30, 2029, unless earlier terminated as set forth herein.

2.0 CONTRACT COMPLETION

In connection with the termination of this Contract for any reason, and only upon the execution of a mutually agreed change order or addendum, the Contractor shall make all commercially reasonable efforts for an orderly transition of its duties and responsibilities to another provider and/or to the County. This may include, but is not limited to, preparation of a transition plan and cooperation with the County or other providers in the transition. The transition includes the transfer of all records and other data in the possession, custody, or control of the Contractor that are required to be provided to the County either by the terms of this Agreement or as a matter of law. The parties shall reasonably cooperate during the transition. Client shall reimburse Tyler for all transition services provided by Tyler at Tyler's then-current rates, plus reasonable costs, and expenses, as set forth in the parties' executed change order or addendum. The provisions of this clause shall survive the expiration or termination of this Agreement.

3.0 PAYMENTS

3.1 As consideration for performance of the duties described herein, County shall pay Contractor the sums stated in Exhibit B – Investment Summary.

3.2 Payment shall be made within forty-five (45) days of County's receipt of the invoice.

3.3 INVOICES

3.3.1 The Contractor shall submit one legible copy of their detailed invoice before payment(s) will be made. Incomplete invoices will not be processed. At a

minimum, the invoice must provide the following information, in all cases to the extent applicable:

- Company name, address, and contact information
- County bill-to name and contact information
- Contract serial number
- County purchase order number
- Invoice number and date
- Date(s) of service or delivery
- Quantity
- Description of purchase (product or services)
- Extended price
- Freight (if applicable)
- Mileage with rate (if applicable)
- Total amount due

3.3.2 Problems regarding billing or invoicing shall be directed to the department as listed on the purchase order.

3.3.3 Payment shall only be made to the Contractor by Accounts Payable through the Maricopa County Vendor Express Payment Program. This is an Electronic Funds Transfer (EFT) process. After Contract Award, the Contractor shall (if not previously done) complete the Vendor Registration Form located on the County Department of Finance Vendor Registration Web Site (https://www.maricopa.gov/5169/Vendor-Information).

3.3.4 EFT payments to the routing and account numbers designated by the Contractor shall include the details on the specific invoices that the payment covers. The Contractor is required to discuss remittance delivery capabilities with their designated financial institution for access to those details.

3.4 APPLICABLE TAXES

3.4.1 It is the responsibility of the Contractor to determine any and all applicable taxes. The fees in the Investment Summary do not include any taxes, including, without limitation, sales, use, or excise tax. If County is a tax-exempt entity, County agrees to provide Contractor with a tax-exempt certificate. Otherwise, Contractor will pay all applicable taxes to the proper authorities and County will reimburse Contractor for such taxes. If County has a valid direct-pay permit, County agrees to provide Contractor with a copy. The legal liability to remit the tax is on the entity conducting business in Arizona. Tax is not a determining factor in contract award.

3.4.2 The County will look at the price or offer submitted and will not deduct, add, or alter pricing based on speculation or application of any taxes, nor will the County provide Contractor any advice or guidance regarding taxes. If Contractor has questions regarding its tax liability, seek advice from a tax professional prior to submitting its bid. Contractor may also find information at https://azdor.gov/business. Once the bid is submitted, the offer is valid for the time specified in this solicitation, regardless of mistake or omission of tax liability. If the County finds overpayment of a project due to tax consideration that was not due, the Contractor will be liable to the County for that amount, and by contracting with the County agrees to remit any overpayments back to the County for miscalculations on taxes included in a bid price.

3.4.3 Tax Indemnification: Contractor and all subcontractors shall pay all Federal, State, and local taxes applicable to their operation and any persons employed by the

Contractor. Contractor shall, and require all subcontractors to, hold the County harmless from any responsibility for taxes, damages, and interest, if applicable, contributions required under Federal and/or State and local laws and regulations, and any other costs including transaction privilege taxes, unemployment compensation insurance, Social Security, and workers' compensation. Contractor may be required to establish, to the satisfaction of County, that any and all fees and taxes due to municipality or the State of Arizona for any license or transaction privilege taxes, use taxes, or similar excise taxes are currently paid (except for matters under legal protest).

4.0 AVAILABILITY OF FUNDS; TERMINATION FOR LACK OF APPROPRIATIONS.

4.1 The County shall be the sole judge and authority in determining the availability of funds under this Contract. County shall keep the Contractor fully informed as to the availability of funds. If County should not appropriate or otherwise receive funds sufficient to purchase, lease, operate, or maintain the software or services set forth in this Agreement, County may unilaterally terminate this Agreement upon thirty (30) days' written notice to Contractor. County will not be entitled to a refund or offset of previously paid license and other fees. County agrees not to use termination for lack of appropriations as a substitute for termination for convenience. In the event of termination for lack of appropriation, County will pay Contractor for all undisputed fees and expenses related to the software, products, and/or services County has received, or Contractor has incurred or delivered, prior to the effective date of termination. Disputed fees and expenses in all terminations must have been submitted as invoice disputes in accordance with Section F (2) of the LICENSE AND SERVICES ADDENDUM.

4.2 If any action is taken by any State agency, Federal department, or any other agency or instrumentality to suspend, decrease, or terminate its fiscal obligations under, or in connection with, this contract, County may amend, suspend, decrease, or terminate its obligations under, or in connection with, this Contract. In the event of termination, County shall be liable for payment only for services rendered prior to the effective date of the termination. County shall give written notice of the effective date of any suspension, amendment, or termination under this section, at least thirty (30) days in advance, and as further set forth above in Section 4.1.

5.0 DUTIES

The Contractor shall perform all duties as stated in this Contract, or as otherwise agreed to in writing by the parties.

6.0 TERMS AND CONDITIONS

6.1 INDEMNIFICATION

6.1.1 To the fullest extent permitted by law, and to the extent that claims, damages, losses, or expenses are not covered and paid by insurance purchased by the Contractor, the Contractor shall defend, indemnify, and hold harmless the County (as Owner), its agents, representatives, officers, directors, officials, and employees from and against all claims, damages, losses, and expenses (including, but not limited to attorneys' fees, court costs, expert witness fees, and the costs and attorneys' fees for appellate proceedings) —other than those claims specifically listed in section 6.1.2 below—to the extent caused by or alleged to have been caused by the negligent acts, errors, or omissions of the Contractor, a subcontractor, or anyone employed by them relating to the performance of this Contract County must notify Contractor promptly in writing of the claim and give Contractor sole control over its defense or settlement, except where settlement

involves a County obligation or does not release County from further liability. County agrees to provide Contractor with reasonable assistance, cooperation, and information in defending the claim.

6.1.2 To the fullest extent permitted by law, the Contractor shall defend, indemnify, and hold harmless the County (as Owner), its agents, representatives, officers, directors, officials, and employees from and against all claims, damages, losses, and expenses (including, but not limited to attorneys' fees, court costs, expert witness fees, and the costs and attorneys' fees for appellate proceedings) for (a) personal injury or property damage to the extent caused by the negligence or willful misconduct or the Contractor, or (b) Contractor's violation of PCI-DSS Requirements or a law applicable to Contractor's performance under this Contract. County must notify Contractor promptly in writing of the claim and give Contractor sole control over its defense or settlement, except where settlement involves a County obligation or does not release County from further liability. County agrees to provide Contractor with reasonable assistance, cooperation, and information in defending the claim.

6.1.3 The amount and type of insurance coverage requirements set forth herein will in no way be construed as limiting the scope of the indemnity in this section.

6.1.4 The scope of this indemnification does not extend to the sole negligence of County.

6.2 INFRINGEMENT DEFENSE AND INDEMNIFICATION

6.2.1 Contractor will defend County against any third-party claim(s) that the Tyler Software or Documentation infringes that third party's patent, copyright, or trademark, or misappropriates its trade secrets, and will pay the amount of any resulting adverse final judgment (or settlement to which Contractor consents). County must notify Contractor promptly in writing of the claim and give Contractor sole control over its defense or settlement. County agrees to provide Contractor with reasonable assistance, cooperation, and information in defending the claim at Contractor's expense.

6.2.2 Contractor's obligations under this Section 6.2 will not apply to the extent the claim or adverse final judgment is based on County's use of the Tyler Software in contradiction of this Agreement, including with non-licensed third parties, or County's willful infringement.

6.2.3 If Contractor receives information concerning an infringement or misappropriation claim related to the Tyler Software, Contractor may, at Contractor's expense and without obligation to do so, either: (a) procure for County the right to continue its use; (b) modify it to make it non-infringing; or (c) replace it with a functional equivalent, in which case County will stop running the allegedly infringing Tyler Software immediately. Alternatively, Contractor may decide to litigate the claim to judgment, in which case County may continue to use the Tyler Software consistent with the terms of this Agreement.

6.2.4 If an infringement or misappropriation claim is fully litigated and County's use of the Tyler Software is enjoined by a court of competent jurisdiction, in addition to paying any adverse final judgment (or settlement to which Contractor consents), Contractor will, at Contractor's option, either: (a) procure the right to continue its use; (b) modify it to make it non-infringing; or (c) replace it with a functional equivalent. This section provides County's exclusive remedy for third party

copyright, patent, or trademark infringement and trade secret misappropriation claims.

6.2.5 Exceptions

Contractor will have no defense or indemnity obligation for any Claim based on:

6.2.5.1 modifications by someone other than Contractor;

6.2.5.2 software has been modified by Contractor in accordance with County-provided specifications or instructions;

6.2.5.3 use or combination by the County of software with Third-Party Products, open source, or freeware technology;

6.2.5.4 Third-Party Products, open source, or freeware technology;

6.2.5.5 a product that is used or located by County in a country other than the country in which or for which it was supplied by Contractor;

6.2.5.6 possession or use of a product after Contractor has informed County of modifications or changes required to avoid such Claim and offered to implement those modifications or changes, if such Claim would have been avoided by implementation of Contractor's suggestions and to the extent County did not provide Contractor with a reasonable opportunity to implement Contractor's suggestions; or

6.2.5.7 the amount of revenue or profits earned, or other value obtained by the use of products, or the amount of use of the products.

6.2.6 The foregoing states Contractor’s entire liability, and County’s sole and exclusive remedy, except as provided by law or equity, with respect to any infringement or misappropriation of any intellectual property rights of another party.

6.3 INSURANCE

6.3.1 Contractor, at Contractor’s own expense, shall purchase and maintain, at a minimum, the herein stipulated insurance from a company or companies duly licensed by the State of Arizona and possessing an AM Best, Inc. category rating of B++. In lieu of State of Arizona licensing, the stipulated insurance may be purchased from a company or companies, which are authorized to do business in the State of Arizona.

6.3.2 All insurance required herein shall be maintained in full force and effect until all work or service required to be performed under the terms of the Contract is satisfactorily completed and formally accepted.

6.3.3 In the event that the insurance required is written on a claims-made basis, continuous coverage will be maintained for a period of two years beginning at the time work under this Contract is completed.

6.3.4 Contractor’s Commercial General Liability and Automobile Liability insurance shall be primary insurance as respects County, and any insurance or self-insurance maintained by County shall not contribute to it.

6.3.5 The insurance policies may provide coverage that contains deductibles or self-insured retentions. Contractor shall be solely responsible for the deductible and/or self-insured retention.

6.3.6 Contractor's Commercial General Liability and Automobile Liability insurance shall include County, its agents, representatives, officers, directors, officials, and employees as additional insureds.

6.3.7 Contractor's Commercial General Liability and Automobile Liability insurance shall contain a waiver of transfer of rights of recovery (subrogation) against County, its agents, representatives, officers, directors, officials, and employees for any claims arising out of Contractor's work or service.

6.3.8 If available, the Commercial General Liability and Automobile Liability insurance policies required by this Contract may be combined with Commercial Umbrella Insurance policies to meet the minimum limit requirements. If a Commercial Umbrella insurance policy is utilized to meet insurance requirements, the Certificate of Insurance shall indicate which lines the Commercial Umbrella Insurance covers.

6.3.8.1 Commercial General Liability

Commercial General Liability (CGL) insurance and, if necessary, Commercial Umbrella insurance with a limit of not less than $1,000,000 for each occurrence, $2,000,000 Products/Completed Operations Aggregate, and $2,000,000 General Aggregate Limit. The policy shall include coverage for premises liability, bodily injury, broad form property damage, personal injury, products and completed operations and blanket contractual coverage, and shall not contain any provisions which would serve to limit third party action over claims.

6.3.8.2 Automobile Liability

Commercial/Business Automobile Liability insurance with a combined single limit for bodily injury and property damage of not less than $1,000,000 each occurrence with respect to any of the Contractor's owned, hired, and non-owned vehicles assigned to or used in performance of the Contractor's work or services or use or maintenance of the premises under this Contract.

6.3.8.3 Workers' Compensation

6.3.8.3.1 Workers' compensation insurance to cover obligations imposed by Federal and State statutes having jurisdiction of Contractor's employees engaged in the performance of the work or services under this contract; and Employer's Liability insurance of not less than $1,000,000 for each accident, $1,000,000 disease for each employee, and $1,000,000 disease policy limit.

6.3.8.3.2 Contractor waives all rights of subrogation against this Contract and its agents, officers, directors, and employees for claims under Contractor's Automobile Liability and Commercial General Liability policies that arise out of or relate to the Contract and are between County and

Contractor, except to the extent the damage or injury is caused by County.

6.3.8.4 Errors and Omissions/Professional Liability Insurance

Technology Errors & Omission insurance: Such insurance shall cover any and all errors, omissions, or negligent acts in the delivery of products, services, and/or licensed programs under this Contract.

- Each claim $5,000,000

In the event that the Technology Errors & Omission insurance required by this Contract is written on a claims-made basis, either continuous coverage will be maintained or an extended discovery period will be exercised for a period of two years, beginning at the time work under this Contract is completed.

6.3.8.5 Crime

Contractor shall maintain Commercial Crime Liability Insurance with a limit of not less than $1,000,000 for each occurrence. The policy shall include, but not be limited to, coverage for employee dishonesty, fraud, theft, or embezzlement.

6.3.8.6 Cyber, Network Security, and Privacy Liability

Cyber, Network Security and Privacy Liability Insurance with a limit of not less than $5,000,000 on a claims-made basis.

6.3.9 Certificates of Insurance

6.3.9.1 Contractor shall furnish the County with valid and complete Certificates of Insurance, or formal endorsements as required by the Contract, issued by Contractor's insurer(s), as evidence that policies providing the required coverage, conditions and limits required by this Contract are in full force and effect.

6.3.9.2 In the event any insurance policy(ies) required by this Contract is (are) written on a claims-made basis, coverage shall extend for two years past completion and acceptance of Contractor's work or services and as evidenced by annual certificates of insurance.

6.3.9.3 Renewal certificates of insurance will be provided as close as practicable to the date the applicable policy or policies is/are renewed.

6.3.9.4 Certificates of Insurance shall identify Maricopa County as the certificate holder as follows:

Maricopa County
c/o Risk Management
301 W Jefferson St, Suite 910
Phoenix, AZ 85003

6.3.10 Cancellation and Expiration Notice

Contractor will provide County with notice of cancellation or non-renewal, or reduction in Contractor's insurance coverages below the minimum requirements set forth in the Contract, within thirty (30) days thereof unless replaced. Such notice shall be sent directly to Maricopa County Office of Procurement Services and shall be mailed, or hand delivered to 301 W. Jefferson St., Suite 700, Phoenix, AZ 85003.

6.4 FORCE MAJEURE

6.4.1 Neither party shall be liable for failure of performance, nor incur any liability to the other party on account of any loss or damage resulting from any delay or failure to perform all or any part of this contract, if such delay or failure is caused by events, occurrences, or causes beyond the reasonable control and without negligence of the parties. Such events, occurrences, or causes include, but are not limited to, acts of God/nature (including fire, flood, earthquake, storm, hurricane, or other natural disaster), war, invasion, act of foreign enemies, hostilities (whether war is declared or not), civil war, riots, rebellion, revolution, insurrection, military or usurped power or confiscation, terrorist activities, nationalization, government sanction, lockout, blockage, embargo, labor dispute, strike, and interruption or failure of electricity or telecommunication service, and pandemic.

6.4.2 Each party, as applicable, shall give the other party notice within ten (10) business days of the Force Majeure event of its inability to perform and particulars in reasonable detail of the cause of the inability. Each party must use best efforts to remedy the situation and remove, as soon as practicable, the cause of its inability to perform or comply.

6.4.3 The party asserting Force Majeure as a cause for non-performance shall have the burden of proving that reasonable steps were taken to minimize delay or damages caused by foreseeable events, that all non-excused obligations were substantially fulfilled, and that the other party was timely notified of the likelihood or actual occurrence which would justify such an assertion, so that other prudent precautions could be contemplated.

6.5 ORDERING AUTHORITY

Any request for purchase shall be accompanied by a valid purchase order issued by a County department or directed by a Certified Agency Procurement Aide (CAPA) with a purchase card for payment.

6.6 PURCHASE CARD ORDERING CAPABILITY

County may opt to use a purchase card (Visa or Master Card) to make payment for orders under this Contract.

6.7 NO MINIMUM OR MAXIMUM PURCHASE OBLIGATION

This Contract does not guarantee any minimum or maximum purchases will be made. Orders will only be placed under this Contract when the County identifies a need and proper authorization and documentation have been approved.

6.8 PURCHASE ORDERS

Purchase orders submitted by the County are for the County's internal administrative purposes, and the terms and conditions contained in those purchase orders will have no force or effect to any extent they deviate from the terms of this contract. County reserves the right to correct errors in its own purchase orders within a reasonable period of time after issuance.

6.9 BACKGROUND CHECK

Contractor's employees undergo criminal background checks prior to hire. All employees sign Contractor's confidentiality agreement and security policies. Additional background checks for Contractor personnel may be required by law or County or constituent school district policy and when required shall be performed. This applies to, but is not limited to, the company, subcontractors, and employees, and the failure to pass these checks may result in the County requiring the Contractor to reassign personnel who do not pass these checks.

6.10 STOP WORK ORDER

6.10.1 The procurement officer may, at any time, by written order to the Contractor, require the Contractor to stop all, or any part, of the work called for by this contract for a period of 90 calendar days after the order is delivered to the Contractor, and for any further period to which the parties may agree. The order shall be specifically identified as a stop work order issued under this clause. Upon receipt of the order, the Contractor shall immediately comply with its terms and take all reasonable steps to minimize the incurrence of costs allocable to the work covered by the order during the period of work stoppage. Within a period of 90 calendar days after a stop work order is delivered to the Contractor, or within any extension of that period to which the parties shall have agreed, the procurement officer shall either:

6.10.1.1 cancel the stop work order; or

6.10.1.2 terminate the work covered by the order as provided in the Termination for Default or the Termination for Convenience clause of this contract.

The procurement officer may make an equitable adjustment in the delivery schedule and/or contract price, and the contract shall be modified, in writing, accordingly, if the Contractor demonstrates that the stop work order resulted in an increase in costs to the Contractor or otherwise requires a change to the project schedule.

6.11 TERMINATION FOR CONVENIENCE

The County may terminate this Contract for convenience by providing 60 calendar days advance written notice to the Contractor. In the event of termination for convenience, County will pay Contractor for all undisputed fees and expenses related to the software, products, and/or services Client has received, or Tyler has incurred or delivered, prior to the effective date of termination. Disputed fees and expenses in all terminations other than County's termination for cause must have been submitted as invoice disputes in accordance with Section F (2) of the LICENSE AND SERVICES ADDENDUM.

6.12 TERMINATION FOR DEFAULT

6.12.1 For Cause. If County believes Contractor has materially breached this Agreement, County will invoke the Dispute Resolution clause set forth in Section 6.46. County

may terminate this Agreement for cause in the event Contractor does not cure, or create a mutually agreeable action plan to address, a material breach of this Agreement within the thirty (30) day window set forth in Section 6.46. In the event of termination for cause, County will pay Contractor for all undisputed fees and expenses related to the software, products, and/or services County has received, or Tyler has incurred or delivered, prior to the effective date of termination.

6.12.2 Insolvency. The County shall have the right to terminate this Contract at any time in the event Contractor files a petition in bankruptcy, or is adjudicated bankrupt; or if a petition in bankruptcy is filed against Contractor and not discharged within thirty (30) days; or if Contractor becomes insolvent or makes an assignment for the benefit of its creditors or an arrangement pursuant to any bankruptcy law; or if a receiver is appointed for Contractor or its business. In the event of termination for insolvency, County will pay Contractor for all undisputed fees and expenses related to the software, products, and/or services County has received, or Tyler has incurred or delivered, prior to the effective date of termination.

6.13 WARRANTY OF SERVICES

The Contractor warrants that it will perform the services in a professional, workmanlike manner, consistent with industry standards. In the event Contractor provides services that do not conform to this warranty, Contractor will re-perform such services at no additional cost to County.

6.14 INSPECTION OF SERVICES

6.14.1 During a new implementation, County has the right to inspect and test the software prior to go-live. County shall perform inspections and tests in a manner that will not unduly delay the work and in accordance with the applicable statement of work for the software.

6.14.2 Regarding a new implementation, If any of the services do not conform to contract requirements, County may require the Contractor to perform the services again in conformity with contract requirements, at no cost to the County. When the defects in services cannot be corrected by re-performance, County may:

6.14.2.1 require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and

6.14.2.2 mutually agree with Contractor on a reduction in contract price to reflect the reduced value of the services performed.

6.14.3 Regarding a new implementation, If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, County may:

6.14.3.1 terminate the contract after notice and an opportunity to cure in accordance with the Contract terms.

6.15 USAGE REPORT

The Contractor shall furnish the County a usage report, upon request, delineating the acquisition activity governed by the Contract. The format of the report shall be approved by the County and shall disclose the quantity and dollar value of each Contract item by individual unit of measure.

6.16 STATUTORY RIGHT OF CANCELLATION FOR CONFLICT OF INTEREST

Notice is given that, pursuant to A.R.S. § 38-511, the County may cancel any contract without penalty or further obligation within three years after execution of the contract, if any person significantly involved in initiating, negotiating, securing, drafting, or creating the contract on behalf of the County is at any time, while the contract or any extension of the contract is in effect, an employee or agent of any other party to the contract in any capacity or consultant to any other party of the contract with respect to the subject matter of the contract. Additionally, pursuant to A.R.S. § 38-511, the County may recoup any fee or commission paid or due to any person significantly involved in initiating, negotiating, securing, drafting, or creating the contract on behalf of the County from any other party to the contract arising as the result of the contract.

6.17 SUBCONTRACTING; ASSIGNMENT; BINDING EFFECT

6.17.1 This Agreement shall be binding on, and shall be for the benefit of, the parties' successors and permitted assigns. Neither party may assign to another Contractor or subcontract to another party for performance of the terms and conditions hereof after the Effective Date without the written consent of the other; provided, however, County's consent is not required for an assignment by Contractor as a result of a corporate reorganization, merger, acquisition, or purchase of substantially all of Contractor's assets.

6.17.2 The subcontractor's rate for the job shall not exceed that of the prime Contractor's rate, as bid in the pricing section, unless the prime Contractor is willing to absorb any higher rates. The subcontractor's invoice shall be invoiced directly to the prime Contractor, who in turn shall pass-through the costs to the County, without mark-up. A copy of the subcontractor's invoice must accompany the prime Contractor's invoice.

6.18 AMENDMENTS

All amendments to this Contract shall be in writing and approved/signed by both parties. The County Office of Procurement Services shall be responsible for approving all amendments for The County.

6.19 ADDITIONS/DELETIONS OF REQUIREMENTS

The County reserves the right to add and/or delete materials and services to a Contract. If a service requirement is deleted, payment to the Contractor will be reduced proportionately to the amount of service reduced in accordance with the bid price. If additional materials or services are required from a Contract, prices for such additions will be negotiated between the Contractor and the County.

6.20 RIGHTS IN DATA

The County shall have the use of its own data and reports resulting from a contract without additional cost or other restriction except as may be established by law or applicable regulation.

6.21 ACCESS TO AND RETENTION OF RECORDS FOR THE PURPOSE OF AUDIT AND/OR OTHER REVIEW

6.21.1 In accordance with Section MC1-372 of the Maricopa County Procurement Code, the Contractor agrees to retain (physical or digital copies of) all books, records, accounts, statements, reports, files, and other records and back-up documentation

relevant to this Contract for six years after final payment or until after the resolution of any audit questions, which could be more than six years, whichever is longest. The County, Federal, or State auditors and any other persons duly authorized by the department shall have full access to and the right to examine, copy, and make use of, any and all said materials.

6.21.2 If the Contractor's books, records, accounts, statements, reports, files, and other records and back-up documentation relevant to this Contract are not sufficient to support and document that requested services were provided, the Contractor shall reimburse the County for the services not so adequately supported and documented.

6.22 AUDIT DISALLOWANCES

If at any time it is determined by the County that a cost for which payment has been made is a disallowed cost, the County shall notify the Contractor in writing of the disallowance. The course of action to address the disallowance shall be at sole discretion of the County, and may include either an adjustment to future invoices, request for credit, request for a check, or a deduction from current invoices submitted by the Contractor equal to the amount of the disallowance, or to require reimbursement forthwith of the disallowed amount by the Contractor by issuing a check payable to the County.

6.23 NONWAIVER

In the event that the terms and conditions of this Agreement are not strictly enforced by either party, such non-enforcement will not act as or be deemed to act as a waiver or modification of this Agreement, nor will such non-enforcement prevent such party from enforcing each and every term of this Agreement thereafter.

6.24 VALIDITY

The invalidity, in whole or in part, of any provision of this Contract shall not void or affect the validity of any other provision of the Contract.

6.25 SEVERABILITY

The removal, in whole or in part, of any provision of this Contract shall not void or affect the validity of any other provision of this Contract.

6.26 RELATIONSHIPS

In the performance of the services described herein, the Contractor shall act solely as an independent contractor, and nothing herein or implied herein shall at any time be construed as to create the relationship of employer and employee, co-employee, partnership, principal and agent, or joint venture between the County and the Contractor.

6.27 NON-DISCRIMINATION

Contractor agrees to comply with all provisions and requirements of Arizona Executive Order 2009-09, including flow down of all provisions and requirements to any subcontractors. Executive Order 2009-09 supersedes Executive Order 99-4 and amends Executive Order 75-5 and is hereby incorporated into this Contract as if set forth in full herein. During the performance of this contract, contractor shall not discriminate against any employee, client, or any other individual in any way because of that person's age, race, creed, color, religion, sex, disability, or national origin. (Arizona Executive Order 2009-09 can be viewed at https://apps.azsos.gov/public_services/register/2009/46/governor.pdf)

6.28 WRITTEN CERTIFICATION PURSUANT to A.R.S. § 35-393.01

If Contractor engages in for-profit activity and has 10 or more employees, and if this Agreement has a value of $100,000 or more, Contractor certifies it is not currently engaged in, and agrees for the duration of this Agreement to not engage in, a boycott of goods or services from Israel. This certification does not apply to a boycott prohibited by 50 U.S.C. § 4842 or a regulation issued pursuant to 50 U.S.C. § 4842.

6.29 CERTIFICATION REGARDING DEBARMENT AND SUSPENSION

6.29.1 The undersigned (authorized official signing on behalf of the Contractor) certifies to the best of his or her knowledge and belief that the Contractor, its current officers, and directors:

6.29.1.1 are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from being awarded any contract or grant by any United States department or agency or any state, or local jurisdiction;

6.29.1.2 have not within a three-year period preceding this contract:

6.29.1.2.1 been convicted of fraud or any criminal offense in connection with obtaining, attempting to obtain, or as the result of performing a government entity (Federal, State, or local) transaction or contract; or

6.29.1.2.2 been convicted of violation of any Federal or State antitrust statutes or conviction for embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property regarding a government entity transaction or contract;

6.29.1.3 are not presently indicted or criminally charged by a government entity (Federal, State, or local) with commission of any criminal offenses in connection with obtaining, attempting to obtain, or as the result of performing a government entity public (Federal, State, or local) transaction or contract;

6.29.1.4 are not presently facing any civil charges from any governmental entity regarding obtaining, attempting to obtain, or from performing any governmental entity contract or other transaction, though Contractor may have civil litigation pending vis-à-vis one or more governmental entities; and

6.29.1.5 have not within a three-year period preceding this Contract had any public transaction (Federal, State, or local) terminated for cause or default.

6.29.2 If any of the above circumstances described in the paragraph are applicable to the entity submitting a bid for this requirement, include with the bid an explanation of the matter including any final resolution.

6.29.3 The Contractor shall include, without modification, this clause in all lower tier covered transactions (i.e., transactions with subcontractors or sub-subcontractors) and in all solicitations for lower tier covered transactions related to this Contract. If

this clause is applicable to a subcontractor or sub-subcontractor, the Contractor shall include the information required by this clause with their bid.

6.30 VERIFICATION REGARDING COMPLIANCE WITH A.R.S. § 41-4401 AND FEDERAL IMMIGRATION LAWS AND REGULATIONS

6.30.1 By entering into the Contract, the Contractor warrants compliance with the Immigration and Nationality Act (INA using E-Verify) and all other Federal immigration laws and regulations related to the immigration status of its employees and A.R.S. §§ 41-4401 and 23-214(A). The Contractor shall obtain statements from its subcontractors certifying compliance and shall furnish the statements to the County procurement officer upon request. These warranties shall remain in effect through the term of the Contract. The Contractor and its subcontractors shall also maintain Employment Eligibility Verification forms (I-9) as required by the Immigration Reform and Control Act of 1986, as amended from time to time, for all employees performing work under the Contract and verify employee compliance using the E-Verify system and shall keep a record of the verification for the duration of the employee's employment or at least three years, whichever is longer. I-9 forms are available for download at www.uscis.gov.

6.30.2 The County retains the legal right to inspect documents of Contractor and subcontractor employees performing work under this contract to verify compliance with paragraph 6.30.1 of this section. Contractor and subcontractor shall be given reasonable notice of the County's intent to inspect and shall make the documents available at the time and date specified. Should the County suspect or find that the Contractor or any of its subcontractors are not in compliance, the County will consider this a material breach of the contract and may pursue any and all remedies allowed by law, including, but not limited to: suspension of work, termination of the contract for default, and suspension and/or debarment of the Contractor. All costs necessary to verify compliance are the responsibility of the Contractor.

6.31 INFLUENCE

6.31.1 As prescribed in MC1-1203 of the Maricopa County Procurement Code, any effort to influence an employee or agent to breach the County's Ethical Code of Conduct or any ethical conduct, may be grounds for disbarment or suspension under MC1-902.

6.31.2 An attempt to influence includes, but is not limited to:

6.31.2.1 A person offering or providing a gratuity, gift, tip, present, donation, money, entertainment or educational passes or tickets, or any type of valuable contribution or subsidy that is offered or given with the intent to influence a decision, obtain a contract, garner favorable treatment, or gain favorable consideration of any kind.

6.31.3 If a person attempts to influence any employee or agent of the County, the chief procurement officer, or his designee, reserves the right to seek any remedy provided by the County Procurement Code, any remedy in equity or in the law, or any remedy provided by this Contract.

6.32 CONFIDENTIAL INFORMATION

6.32.1 Both parties recognize that their respective employees and agents, in the course of performance of this Agreement, may be exposed to confidential information and

that disclosure of such information could violate rights to private individuals and entities, including the parties. Confidential information is nonpublic information that a reasonable person would believe to be confidential and includes, without limitation, nonpublic information that is related to business practices, strategies and technologies, personal identifying information (*e.g.*, social security numbers) and trade secrets, each as defined by applicable state law. Unless otherwise required by applicable law or by a court order from a court with competent jurisdiction, each party agrees that it will not disclose any confidential information of the other party and further agrees to take all reasonable and appropriate action to prevent such disclosure by its employees or agents. The confidentiality covenants contained herein will survive the termination or cancellation of this Agreement.

6.32.2 Any information obtained in the course of performing this Contract may include information that is proprietary or confidential to the County or the Contractor. This provision establishes the Contractor's and County's obligations regarding such information.

6.32.3 The Contractor and the County shall establish and maintain procedures and controls that are adequate to assure that no information contained in its records and/or obtained from the County or from others in carrying out its functions (services) under the Contract shall be used by or disclosed by it, its agents, officers, or employees, except as required to efficiently perform duties under the Contract. The Contractor's and County's procedures and controls, at a minimum, must be the same procedures and controls it uses to protect its own proprietary or confidential information.

6.32.4 Any requests to the Contractor for County proprietary or confidential information shall be referred to the County for review and approval, prior to any dissemination.

6.33 PUBLIC RECORDS

Under Arizona law, all offers submitted and opened are public records and must be retained by the County at the County Office of Procurement Services. Offers shall be open to public inspection and copying after contract award and execution, except for such offers or sections thereof determined to contain proprietary or confidential information by the Maricopa County Office of Procurement Services. The parties acknowledge that the Client is a public entity subject to the provisions of the Arizona Public Records Laws, A.R.S. §§ 39-121 et. seq. In the event that a public records request is received by the Client requesting records described as confidential, which the Client determines must be disclosed, the Client will notify Tyler and otherwise perform the functions required by such laws.

6.34 INTEGRATION

This Contract represents the entire and integrated agreement between the parties with respect to the subject matter hereof and supersedes all prior negotiations, proposals, communications, understandings, representations, or agreements, whether oral or written, expressed, or implied.

6.35 UNIFORM ADMINISTRATIVE REQUIREMENTS

By entering into this contract, the Contractor agrees to comply with all applicable provisions of Title 2, Subtitle A, Chapter II, Part 200—UNIFORM ADMINISTRATIVE REQUIREMENTS, COST PRINCIPLES, AND AUDIT REQUIREMENTS FOR FEDERAL AWARDS contained in Title 2 C.F.R. § 200 *et seq.*

6.36 GOVERNING LAW

This Contract shall be governed by the laws of the State of Arizona, without regard to its rules on conflicts of law. Venue for any actions or lawsuits involving this Contract will be in Maricopa County Superior Court, Phoenix, Arizona, or the United States District Court for the District of Arizona.

6.37 FORCED LABOR

6.37.1 By submitting a bid for this solicitation and/or entering into a contract as a result of this solicitation, Contractor agrees to comply with all applicable portions of A.R.S. § 35-394. Contracting; procurement; prohibition; written certification; remedy; termination; exception; definitions.

6.37.2 Contractor certifies that it does not currently, and agrees for the duration of the contract, that it will not use:

6.37.2.1 The forced labor of ethnic Uyghurs in the People's Republic of China.

6.37.2.2 Any goods or services produced by the forced labor of ethnic Uyghurs in the People's Republic of China.

6.37.2.3 Any contractors, subcontractors or suppliers that use the forced labor or any good or services produced by the forced labor of ethnic Uyghurs in the People's Republic of China.

6.37.3 If Contractor becomes aware during the term of the Agreement that Contractor is not in compliance with this paragraph, the Contractor shall notify the County within five business days after becoming aware of the noncompliance. If the Contractor fails to provide a written certification to the County that the contractor has remedied the noncompliance within 180 days after notifying the County of its noncompliance, then the Agreement terminates, except that if the Agreement termination date occurs before the end of the 180 day period, the Agreement terminates on the Agreement termination date.

6.38 ORDER OF PRECEDENCE

In the event of a conflict between the provisions of the main portion of this Contract and the provisions of any of the addendums or exhibits, if applicable, the terms of the main portion of this Contract shall prevail.

6.39 UNIQUE ENTITY IDENTIFIER (UEI) AND SYSTEM FOR AWARD MANAGEMENT REGISTRATION

All contractors that receive funding must have a UEI number through https://sam.gov/content/entity-registration. Contractor must also remain current with the System for Award Management www.sam.gov throughout the term of the Contract.

6.40 RELIGIOUS ACTIVITIES

The Contractor agrees that costs, planned or claimed, including costs incurred, shall not include any expense for any religious activity.

6.41 POLITICAL ACTIVITY PROHIBITED

None of the funds, materials, property, or services contributed by the County or the Contractor under the Agreement shall be used in the performance of this Agreement for any partisan political activity, or to further the election or defeat of any candidate for public office.

6.42 EQUAL EMPLOYMENT OPPORTUNITY

6.42.1 The Contractor shall not discriminate against any employee or applicant for employment because of race, age, disability, color, religion, sex, or national origin. The Contractor shall take affirmative action to ensure applicants are employed and that employees are treated during employment without regard to their race, age, disability, color, religion, sex, or national origin. Such action shall include but is not limited to the following: employment, upgrading, demotion or transfer, recruitment, or recruitment advertising, lay-off or termination, rates of pay or other forms of compensation, and selection for training, including apprenticeship.

6.42.2 Contractor shall comply with the following provisions:

6.42.2.1 Title VI and VII of the Civil Rights Act of 1964, as amended (42 U.S.C. §§ 2000a, et seq.);

6.42.2.2 The Rehabilitation Act of 1973, as amended (29 U.S.C. §§ 701, et seq.);

6.42.2.3 The Age Discrimination in Employment Act of 1967, as amended (29U.S.C. §§ 621, et seq.);

6.42.2.4 The Americans With Disabilities Act of 1990 (42 U.S.C. §§ 12101, et seq.); and Arizona Executive Order 2009-09, as amended, et seq., which mandates that all persons shall have equal access to employment opportunities.

6.42.3 Contractor understands that the United States has the right to seek judicial enforcement of this assurance.

6.43 CERTIFICATION REGARDING LOBBYING

6.43.1 Contractor certifies, to the best of their knowledge and belief, that:

6.43.1.1 No federal appropriated funds have been paid or will be paid, by or on behalf of the Contractor, to any person for influencing or attempting to influence an officer or employee of any agency. This applies to a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any federal contract, the making of any federal grant including the making of any federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any federal contract, grant, loan, or cooperative agreement.

6.43.1.2 If any funds, other than federal appropriated funds, have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this federal contract, grant, loan, or cooperative

agreement, the undersigned shall complete and submit Standard Form-LLL, “Disclosure Form to Report Lobbying,” in accordance with its instructions.

6.43.2 Contractor shall include Lobbying Certification language in the award documents for all subcontractors (including sub-grants, and contract under grants, loans, and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

6.43.2.1 The Lobbying Certification is a material representation of fact upon which reliance was placed when this transaction is made or entered into. Submission of this certification is prerequisite for making or entering into this transaction imposed by section 1352, Title 31, U.S. Code. Any successful proposer(s) who fails to file the required certification shall be subject to a civil penalty of not less than $10,000.00 and not more than $100,000.00 for each such failure.

6.44 CLEAN AIR ACT & CLEAN WATER ACT

Contractor must comply with all applicable standards, orders, or requirements issued under section 306 of the Clean Air Act (42 U.S.C. § 7606), section 508 of the Clean Water Act (33 U.S.C. § 1368) Executive Order 11738, and Environmental Protection Agency regulations.

6.45 ENERGY POLICY AND CONSERVATION ACT

Contractor must adhere to the applicable standards and policies relating to energy efficiency, which are contained in the State energy conservation plan issued in compliance with the Energy Policy and Conservation Act (Pub. L. 94-163, 89 Stat.871).

6.46 CONTRACT DISPUTES

Each party agrees to provide the other with written notice within thirty (30) days of becoming aware of a dispute. The parties agree to cooperate in trying to reasonably resolve all disputes, including, if requested by either party, appointing a senior representative to meet and engage in good faith negotiations with one another’s appointed senior representative. Senior representatives will convene within thirty (30) days of the written dispute notice, unless otherwise agreed. All meetings and discussions between senior representatives will be deemed confidential settlement discussions not subject to disclosure under Federal Rule of Evidence 408 or any similar applicable state rule. If the parties fail to resolve the dispute, then the parties shall participate in non-binding mediation in an effort to resolve the dispute. If the dispute remains unresolved after mediation, then either party may assert its respective rights and remedies in a court of competent jurisdiction. Nothing in this section shall prevent either party from seeking necessary injunctive relief during the dispute resolution procedures.

6.47 INCORPORATION OF DOCUMENTS

6.47.1 The following are to be attached to and made part of this Contract:

6.47.1.1 License and Services Addendum

6.47.1.2 Exhibit A – Vendor Information

6.47.1.3 Exhibit B - Investment Summary

6.47.1.4 Exhibit C – Invoicing and Payment Policy; Schedule 1, Business Travel Policy

6.47.1.5 Exhibit D – Maintenance and Support Agreement; Schedule 1 Support Call Process

6.48 NOTICES

All notices or communications required or permitted as a part of this Agreement, such as notice of an alleged material breach for a termination for cause or a dispute that must be submitted to dispute resolution, must be in writing and will be deemed delivered upon the earlier of the following: (a) actual receipt by the receiving party; (b) upon receipt by sender of a certified mail, return receipt signed by an employee or agent of the receiving party; (c) upon receipt by sender of proof of email delivery; or (d) if not actually received, five (5) days after deposit with the United States Postal Service authorized mail center with proper postage (certified mail, return receipt requested) affixed and addressed to the other party at the address set forth below or such other address as the party may have designated by proper notice. The consequences for the failure to receive a notice due to improper notification by the intended receiving party of a change in address will be borne by the intended receiving party. All notices given pursuant to the terms of this Contract shall be addressed to:

For County:

Maricopa County
Office of Procurement Services
301 W. Jefferson St. Suite 700
Phoenix, Arizona 85003-1647

For Contractor:

Tyler Technologies, Inc.
One Tyler Drive
Yarmouth, ME 04096
Attention: Chief Legal Officer

IN WITNESS WHEREOF, this contract is executed on the date set forth above.

CONTRACTOR

_____
AUTHORIZED SIGNATURE

_____
PRINTED NAME AND TITLE

_____
ADDRESS

_____
DATE

MARICOPA COUNTY

_____ _____
CHAIRMAN, BOARD OF SUPERVISORS DATE

ATTESTED:

_____ _____
CLERK OF THE BOARD DATE

APPROVED AS TO FORM:

_____ _____
DEPUTY COUNTY ATTORNEY DATE

LICENSE AND SERVICES ADDENDUM

SECTION A – DEFINITIONS

- **"Business Travel Policy"** means Tyler's business travel policy. A copy of Tyler's current Business Travel Policy is attached as Schedule 1 to Exhibit C.
- **"Defect"** means a failure of the Tyler Software to substantially conform to the functional descriptions set forth in Tyler's written proposal to Client, or their functional equivalent. Future functionality may be updated, modified, or otherwise enhanced through Tyler's maintenance and support services, and the governing functional descriptions for such future functionality will be set forth in Tyler's then-current Documentation.
- **"Developer"** means a third party who owns the intellectual property rights to Third Party Software.
- **"Documentation"** means any online or written documentation related to the use or functionality of the Tyler Software that Tyler provide or otherwise make available to Client, including instructions, user guides, manuals and other training or self-help documentation.
- **"Force Majeure"** means an event beyond the reasonable control of either party, including, without limitation, governmental action, war, riot or civil commotion, fire, natural disaster, or any other cause that could not with reasonable diligence be foreseen or prevented by either party.
- **"Investment Summary"** means the agreed upon cost proposal for the software, products, and services attached as Exhibit B.
- **"Invoicing and Payment Policy"** means the invoicing and payment policy. A copy of Tyler's current Invoicing and Payment Policy is attached as Exhibit C.
- **"Maintenance and Support Agreement"** means the terms and conditions governing the provision of maintenance and support services to all of Tyler's customers. A copy of Tyler's current Maintenance and Support Agreement is attached as Exhibit D.
- **"Order Form"** means an ordering document that includes a quote or investment summary and specifying the items to be provided by Tyler to Client, including any addenda and supplements thereto.
- **"Statement of Work"** means the industry standard implementation plan describing how Tyler's professional services will be provided to implement the Tyler Software, and outlining Client's and Tyler's roles and responsibilities in connection with that implementation.
- **"Support Call Process"** means the support call process applicable to all of Tyler's customers who have licensed the Tyler Software. A copy of Tyler's current Support Call Process is attached as Schedule 1 to Exhibit D.
- **"Third Party Hardware"** means the third party hardware, if any, identified in the Investment Summary.
- **"Third Party Products"** means the Third Party Software and Third Party Hardware.
- **"Third Party Services"** means the third party services, if any, identified in the Investment Summary.
- **"Third Party Software"** means the third party software, if any, identified in the Investment Summary.
- **"Third Party Terms"** means, if any, the end user license agreement(s) or similar terms for the Third Party Products or other parties' products or services, as applicable.

- **"Tyler Software"** means Tyler's proprietary software, including any integrations, custom modifications, and/or other related interfaces identified in the Investment Summary and licensed by Tyler to Client through this Agreement.

SECTION B – SOFTWARE LICENSE

1. License Grant and Restrictions.

1.1 Tyler grants to Client a license to use the Tyler Software for Client's internal business purposes only, in the scope of the internal business purposes disclosed to Tyler as of the Effective Date. Client may make copies of the Tyler Software for backup and testing purposes, so long as such copies are not used in production and the testing is for internal use only. Client's rights to use the Tyler Software are perpetual but may be revoked if Client does not comply with the terms of this Agreement. The parties acknowledge and agree that members of Client's Education Technology Consortium may use and access the Tyler Software for their internal business purposes; to that end, the Tyler Software listed in each schedule of the Investment Summary is licensed for use by the specific member district identified on the schedule applicable to that district only, and subject to the terms of this Agreement. Client is permitted to host the Tyler Software for each member district with an applicable schedule in the Investment Summary. Client is solely responsible for the performance of Client's servers and for granting and accommodating member districts' access thereto. Tyler disclaims any responsibility for, or liability to, member districts or Client for the hosting of the Tyler Software or Client's access thereto.

1.2 Without limiting the terms of Section B(1.1), Client understands and agrees that the Tyler Software set forth in the Investment Summary as subscription or software as a service ("SaaS") do not include perpetual rights. If Client does not pay the required annual fee in accordance with the Invoicing and Payment Policy, Client's right to use the applicable Software will be suspended unless and until payment in full has been made. Tyler Software provided as SaaS is subject to the Tyler SaaS Services Terms and Service Level Agreement found here: https://www.tylertech.com/terms/tyler-saas-services.

1.3 The Documentation is licensed to Client and may be used and copied by Client's employees and members of Client's Education Technology Consortium for internal, non-commercial reference purposes only.

1.4 Client may not: (a) transfer or assign the Tyler Software to a third party other than members of Client's Education Technology Consortium; (b) reverse engineer, decompile, or disassemble the Tyler Software; (c) rent, lease, lend, or provide commercial hosting services with the Tyler Software; or (d) publish or otherwise disclose the Tyler Software or Documentation to third parties.

1.5 The license terms in this Agreement apply to updates and enhancements Tyler may provide to Client or make available to Client through Client's Maintenance and Support Agreement.

1.6 The right to transfer the Tyler Software to a replacement hardware system is included in Client's license. Client will give Tyler advance written notice of any such transfer and will pay Tyler for any required or requested technical assistance from Tyler associated with such transfer.

1.7 Where applicable with respect to Tyler applications that take or process card payment data, Tyler is responsible for the security of cardholder data that Tyler possesses, including functions relating to storing, processing, and transmitting of the cardholder data and affirm that, as of the Effective Date, Tyler complies with applicable requirements to be considered PCI DSS compliant and have performed the necessary steps to validate compliance with the PCI DSS. Tyler agrees to supply the current status of Tyler's PCI DSS compliance program in the form of an official Attestation of Compliance, which can be found at https://www.tylertech.com/about-Us/compliance, and in the event of any change in Tyler's status, will comply with applicable notice requirements.

1.8 Tyler reserves all rights not expressly granted to Client in this Agreement. The Tyler Software and Documentation are protected by copyright and other intellectual property laws and treaties. Tyler owns the title, copyright, and other intellectual property rights in the Tyler Software and the Documentation. **The Tyler Software is licensed, not sold.**

2. License Fees. Client agrees to pay Tyler the license fees in the amounts set forth in the Investment Summary. Those amounts are payable in accordance with Tyler's Exhibit C, Invoicing and Payment Policy.

3. Limited Warranty. Tyler warrants that the Tyler Software will be without Defect(s) as long as Client has a Maintenance and Support Agreement in effect. If the Tyler Software does not perform as warranted, Tyler will use all reasonable efforts, consistent with industry standards, to cure the Defect as set forth in the Maintenance and Support Agreement.

SECTION C – PROFESSIONAL SERVICES

1. Services. Tyler will provide Client the various implementation-related services itemized in the Investment Summary (if any) and described in this Contract or a Statement of Work, as applicable.

2. Professional Services Fees. Client agrees to pay Tyler the professional services fees in the amounts set forth in the Investment Summary. Those amounts are payable in accordance with Tyler's Invoicing and Payment Policy. Client acknowledges that the fees stated in the Investment Summary are good-faith estimates of the amount of time and materials required for Client's implementation. Tyler will bill Client the actual fees incurred based on the in-scope services provided to Client. Any discrepancies in the total values set forth in the Investment Summary will be resolved by multiplying the applicable hourly rate by the quoted hours.

3. Additional Services. The Investment Summary contains the scope of services and related costs (including programming and/or interface estimates) required for the project based on Tyler's understanding of the specifications Client supplied. If additional work is required, or if Client uses or requests additional services, Tyler will provide Client with an addendum or change order, as applicable, outlining the costs for the additional work. The price quotes in the addendum or change order will be valid for thirty (30) days from the date of the quote.

4. Cancellation. If Client cancels services less than four (4) weeks in advance (other than for Force Majeure or breach by Tyler), Client will be liable for all (a) daily fees associated with cancelled professional services if Tyler is unable to reassign Tyler's personnel and (b) any non-refundable travel

expenses already incurred by Tyler on Client's behalf. Tyler will make all reasonable efforts to reassign personnel in the event Client cancels within four (4) weeks of scheduled commitments.

5. Site Access and Requirements. At no cost to Tyler, Client agrees to provide Tyler with full and free access to Client's personnel, facilities, and equipment as may be reasonably necessary for Tyler to provide implementation services, subject to any reasonable security protocols or other written policies provided to Tyler as of the Effective Date, and thereafter as mutually agreed to by Client and Tyler. Client further agrees to provide a reasonably suitable environment, location, and space for the installation of the Tyler Software and any Third Party Products, including, without limitation, sufficient electrical circuits, cables, and other reasonably necessary items required for the installation and operation of the Tyler Software and any Third Party Products.

6. Client Assistance. Client acknowledges that the implementation of the Tyler Software is a cooperative process requiring the time and resources of Client's personnel. Client agrees to use all reasonable efforts to cooperate with and assist Tyler as may be reasonably required to meet the agreed upon project deadlines and other milestones for implementation. This cooperation includes at least working with Tyler to schedule the implementation-related services outlined in this Agreement. Tyler will not be liable for failure to meet any deadlines and milestones when such failure is due to Force Majeure or to the failure by Client's personnel to provide such cooperation and assistance (either through action or omission).

SECTION D – MAINTENANCE AND SUPPORT

This Agreement includes the period of free maintenance and support services identified in the Invoicing and Payment Policy. If Client has purchased ongoing maintenance and support services and continues to make timely payments for them according to the Invoicing and Payment Policy, Tyler will provide Client with maintenance and support services for the Tyler Software under the terms of the standard Maintenance and Support Agreement.

If Client has opted not to purchase ongoing maintenance and support services for the Tyler Software, the Maintenance and Support Agreement does not apply to Client. Instead, Client will only receive ongoing maintenance and support on the Tyler Software on a time and materials basis. In addition, Client will:

(i) receive the lowest priority under Tyler's Support Call Process;
(ii) be required to purchase new releases of the Tyler Software, including fixes, enhancements and patches;
(iii) be charged Tyler's then-current rates for support services, or such other rates that Tyler may consider necessary to account for Client's lack of ongoing training on the Tyler Software;
(iv) be charged for a minimum of two (2) hours of support services for every support call; and
(v) not be granted access to the support website for the Tyler Software or the Tyler Community Forum.

SECTION E – THIRD PARTY PRODUCTS

To the extent there are any Third Party Products set forth in the Investment Summary, the following terms and conditions will apply:

1. Third Party Hardware. Tyler will sell, deliver, and install onsite the Third Party Hardware, if Client has purchased any, for the price set forth in the Investment Summary. Those amounts are payable in accordance with the Invoicing and Payment Policy.

2. Third Party Software. Upon payment in full of the Third Party Software license fees, Client will receive a non-transferable license to use the Third Party Software and related documentation for Client's internal business purposes only. Client's license rights to the Third Party Software will be governed by the Third Party Terms.

   2.1 Tyler will install onsite the Third Party Software. The installation cost is included in the installation fee in the Investment Summary.

   2.2 If the Developer charges a fee for future updates, releases, or other enhancements to the Third Party Software, Client will be required to pay such additional future fee.

   2.3 The right to transfer the Third Party Software to a replacement hardware system is governed by the Developer. Client will give Tyler advance written notice of any such transfer and will pay Tyler for any required or requested technical assistance from Tyler associated with such transfer.

3. Third Party Products Warranties.

   3.1 Tyler is authorized by each Developer to grant or transfer the licenses to the Third Party Software.

   3.2 The Third Party Hardware will be new and unused, and upon payment in full, Client will receive free and clear title to the Third Party Hardware.

   3.3 Client acknowledges that Tyler is not the manufacturer of the Third Party Products. Tyler does not warrant or guarantee the performance of the Third Party Products. However, Tyler grants and passes through to Client any warranty that Tyler may receive from the Developer or supplier of the Third Party Products.

4. Third Party Services. If Client has purchased Third Party Services, those services will be provided independent of Tyler by such third-party at the rates set forth in the Investment Summary and in accordance with Tyler's Exhibit C, Invoicing and Payment Policy.

5. Maintenance. If Client has a Maintenance and Support Agreement in effect, Client may report defects and other issues related to the Third Party Software directly to Tyler, and Tyler will (a) directly address the defect or issue, to the extent it relates to Tyler's interface with the Third Party Software; and/or (b) facilitate resolution with the Developer, unless that Developer requires that Client has a separate, direct maintenance agreement in effect with that Developer. In all events, if Client does not have a Maintenance and Support Agreement in effect with Tyler, Client will be

responsible for resolving defects and other issues related to the Third Party Software directly with the Developer.

SECTION F – INVOICING AND PAYMENT; INVOICE DISPUTES

1. Invoicing and Payment. Tyler will invoice Client for all fees set forth in the Investment Summary per the Invoicing and Payment Policy, subject to Section F(2).

2. Invoice Disputes. If Client believes any delivered software or service does not conform to the warranties in this Agreement, Client will provide Tyler with written notice within thirty (30) days of Client's receipt of the applicable invoice. The written notice must contain reasonable detail of the issues Client contends are in dispute so that Tyler can confirm the issue and respond to Client's notice with either a justification of the invoice, an adjustment to the invoice, or a proposal addressing the issues presented in Client's notice. Tyler will work with Client as may be necessary to develop an action plan that outlines reasonable steps to be taken by each party to resolve any issues presented in Client's notice. Client may withhold payment of the amount(s) actually in dispute, and only those amounts, until Tyler completes the action items outlined in the plan. If Tyler is unable to complete the action items outlined in the action plan because of Client's failure to complete the items agreed to be done by Client, then Client will remit full payment of the invoice. Tyler reserves the right to suspend delivery of all services, including maintenance and support services, if Client fails to pay an invoice not disputed as described above within fifteen (15) days of notice of Tyler's intent to do so.

SECTION G – RESERVED

SECTION H – WARRANTY DISCLAIMER; LIMITATION OF LIABILITY

1. **DISCLAIMER. EXCEPT FOR THE EXPRESS WARRANTIES PROVIDED IN THIS AGREEMENT AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, TYLER HEREBY DISCLAIMS ALL OTHER WARRANTIES AND CONDITIONS, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES, DUTIES, OR CONDITIONS OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. CLIENT UNDERSTANDS AND AGREES THAT TYLER DISCLAIMS ANY LIABILITY FOR ERRORS THAT RELATE TO USER ERROR.**

2. **LIMITATION OF LIABILITY. EXCEPT AS OTHERWISE EXPRESSLY SET FORTH IN THIS AGREEMENT, TYLER'S LIABILITY FOR DAMAGES ARISING OUT OF THIS AGREEMENT, WHETHER BASED ON A THEORY OF CONTRACT OR TORT, INCLUDING NEGLIGENCE AND STRICT LIABILITY, SHALL BE LIMITED TO CLIENT'S ACTUAL DIRECT DAMAGES, NOT TO EXCEED (A) PRIOR TO FORMAL TRANSITION TO MAINTENANCE AND SUPPORT, THE TOTAL ONE-TIME FEES SET FORTH IN THE INVESTMENT SUMMARY; OR (B) AFTER FORMAL TRANSITION TO MAINTENANCE AND SUPPORT, THE THEN-CURRENT ANNUAL MAINTENANCE AND SUPPORT FEE. THE PARTIES ACKNOWLEDGE AND AGREE THAT THE PRICES SET FORTH IN THIS AGREEMENT ARE SET IN RELIANCE UPON THIS LIMITATION OF LIABILITY AND TO THE MAXIMUM EXTENT ALLOWED UNDER APPLICABLE LAW, THE EXCLUSION OF CERTAIN DAMAGES, AND EACH SHALL APPLY REGARDLESS OF THE FAILURE OF AN ESSENTIAL PURPOSE OF ANY REMEDY. THE FOREGOING LIMITATION OF LIABILITY SHALL NOT APPLY TO CLAIMS THAT ARE SUBJECT TO SECTIONS 6.1.2 AND 6.2.**

3. **EXCLUSION OF CERTAIN DAMAGES. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL TYLER BE LIABLE FOR ANY SPECIAL, INCIDENTAL, PUNITIVE, INDIRECT, OR CONSEQUENTIAL DAMAGES WHATSOEVER, EVEN IF TYLER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.**

SECTION I – GENERAL TERMS AND CONDITIONS

1. Additional Products and Services. Client may purchase additional products and services at the rates set forth in the Investment Summary for twelve (12) months from the Effective Date, and thereafter at Tyler's then-current list price, by executing a mutually agreed addendum. If no rate is provided in the Investment Summary, or those twelve (12) months have expired, Client may purchase additional products and services at Tyler's then-current list price, also by executing a mutually agreed addendum. The terms of this Agreement will control any such additional purchase(s), unless otherwise specifically provided in the addendum.

2. Optional Items. Pricing for any listed optional products and services in the Investment Summary will be valid for twelve (12) months from the Effective Date.

3. No Intended Third Party Beneficiaries. This Agreement is intended solely for the benefit of Tyler and the Client. No third party will be deemed a beneficiary of this Agreement, and, except as provided herein, no third party will have the right to make any claim or assert any right under this Agreement. This provision does not affect the rights of third parties under any Third Party Terms or the rights of school districts that are using the Tyler Software through the Maricopa County Educational Services Agency as permitted under this Agreement.

4. Confidentiality. Both parties recognize that their respective employees and agents, in the course of performance of this Agreement, may be exposed to confidential information and that disclosure of such information could violate rights to private individuals and entities, including the parties. Confidential information is nonpublic information that a reasonable person would believe to be confidential and includes, without limitation, personal identifying information (*e.g.*, social security numbers) and trade secrets, each as defined by applicable state law. Each party agrees that it will not disclose any confidential information of the other party and further agrees to take all reasonable and appropriate action to prevent such disclosure by its employees or agents. The confidentiality covenants contained herein will survive the termination or cancellation of this Agreement. This obligation of confidentiality will not apply to information that:
    (a) is in the public domain, either at the time of disclosure or afterwards, except by breach of this Agreement by a party or its employees or agents;
    (b) a party can establish by reasonable proof was in that party's possession at the time of initial disclosure;
    (c) a party receives from a third party who has a right to disclose it to the receiving party; or
    (d) is the subject of a legitimate disclosure request under the open records laws or similar applicable public disclosure laws governing this Agreement. The parties acknowledge that the Client is a public entity subject to the provisions of the Arizona Public Records Laws, A.R.S. §§ 39-121 et. seq. In the event that a public records request is received by the Client requesting records described as confidential, which the Client determines must be disclosed, the Client will notify Tyler and otherwise perform the functions required by such laws.

5. Multiple Originals and Authorized Signatures. This Agreement may be executed in multiple originals, any of which will be independently treated as an original document. Any electronic, faxed, scanned, photocopied, or similarly reproduced signature on this Agreement or any amendment hereto will be deemed an original signature and will be fully enforceable as if an original signature. Each party represents to the other that the signatory set forth below is duly authorized to bind that party to this Agreement.

Exhibit A
Vendor Information

COMPANY NAME:	Tyler Technologies, Inc.
DOING BUSINESS AS (dba):	Tyler Technologies, Inc.
MAILING ADDRESS:	5101 Tennyson Parkway, Plano, TX 75024
REMIT TO ADDRESS:	P.O. Box 203556, Dallas, TX 75320
TELEPHONE NUMBER:	888.654.3293
FAX NUMBER:	866.673.3274
WWW ADDRESS:	tylertech.com
REPRESENTATIVE NAME:	Cassondra Knight
REPRESENTATIVE TELEPHONE NUMBER:	888.654.3293 Ext. 777556
REPRESENTATIVE EMAIL ADDRESS	cassondra.knight@tylertech.com

	YES	NO	REBATE
WILL ALLOW OTHER GOVERNMENTAL ENTITIES TO PURCHASE FROM THIS CONTRACT:	☐	☒	
WILL ACCEPT PROCUREMENT CARD FOR PAYMENT: [up to $5,000]	☒	☐	

Payment Terms: Please see Exhibit C.

Exhibit B
Investment Summary

The following Investment Summary details the software, products, and services to be delivered by Tyler to Client under the Agreement. This Investment Summary is effective as of the Effective Date.

Tyler sales quotation to be inserted prior to Agreement execution.

Exhibit C

Invoicing and Payment Policy

Tyler will provide Client with the software and services set forth in the Investment Summary. Capitalized terms not otherwise defined will have the meaning assigned to such terms in the Agreement.

Invoicing: Tyler will invoice Client for the applicable license and services fees in the Investment Summary as set forth below. Client's rights to dispute any invoice are set forth in the Agreement.

1. Tyler Software.

   1.1 *License Fees*: License fees are invoiced as follows: (a) 25% on the Effective Date; (b) 60% on the date when Tyler provides Client with access to the applicable Tyler Software (the "Software Access Date"); and (c) 15% on the earlier of use of the Tyler Software in live production or 180 days after the Software Access Date.

   Maintenance and Support Fees: Year 1 maintenance and support fees are waived through the earlier of (a) availability of the Tyler Software for use in a live production environment; or (b) one (1) year from the Effective Date. Year 2 maintenance and support fees are payable on that earlier-of date, and subsequent maintenance and support fees are invoiced annually in advance of each anniversary thereof. Client's fees for the first year of the initial term are shown in the Investment Summary and fees from year 2 on shall be subject to increases of no more than five percent (5%) year over year for the remainder of the five-year term for each applicable member school district. Year 1 of the Agreement is not subject to any increase over the previous year's billing for each member school district shown in the Investment Summary.

   SaaS & Subscription Fees: SaaS (including hosting) fees and subscription fees are invoiced on an annual basis, beginning on the first day of the month immediately following the Effective Date. Client's annual SaaS fees and subscription fees for the first year of the initial term, if any, are shown in the Investment Summary and fees from year 2 on shall be subject to increases of no more than five percent (5%) year over year for the remainder of the five-year term for each applicable member school district. Client's annual SaaS fees and subscription fees (if any) for Year 1 of the Agreement are not subject to any increase over the previous year's billing for each member school district shown in the Investment Summary.

2. Other Tyler Software and Services.

   2.1 *Implementation and Other Professional Services (including training)*: Implementation and other professional services (including training) are billed and invoiced as delivered, at the rates set forth in the Investment Summary.

   2.2 *Business Process Consulting Services*: If Client has purchased any Business Process Consulting services, if they have been quoted as fixed-fee services in the Investment Summary, they will be invoiced 50% upon delivery of the best practice recommendations, by module, and 50% upon delivery of custom desktop procedures, by module. If Client has purchased any Business Process Consulting services and they are quoted as an estimate, then Tyler will bill Client the actual services delivered on a time and materials basis.

2.3 *Conversions*: Fixed-fee conversions, if applicable and in the Investment Summary, are invoiced 50% upon initial delivery of the converted data, by conversion option, and 50% upon Client acceptance to load the converted data into Live/Production environment, by conversion option. Where conversions are quoted as estimated, Tyler will bill Client the actual services delivered on a time and materials basis.

2.4 *Requested Modifications to the Tyler Software*: Requested modifications to the Tyler Software, if applicable and in the Investment Summary, are invoiced 50% upon delivery of specifications and 50% upon delivery of the applicable modification. Client must report any failure of the modification to conform to the specifications within thirty (30) days of delivery; otherwise, the modification will be deemed to be in compliance with the specifications after the 30-day window has passed. Client may still report Defects to Tyler as set forth in the Maintenance and Support Agreement.

2.5 *Other Fixed Price Services*: Except as otherwise provided, other fixed price services, if any, in the Investment Summary are invoiced as delivered, at the rates set forth in the Investment Summary. For the avoidance of doubt, where "Project Planning Services" are provided, payment will be due upon delivery of the Implementation Planning document. Dedicated Project Management services, if any, will be billed monthly in arrears, beginning on the first day of the month immediately following initiation of project planning.

2.6 *Annual Services*: Unless otherwise indicated in this Exhibit C, fees for annual services are due annually, in advance, commencing on the availability of the service. Client's annual fees for the first year of the initial term, if any, are shown in the Investment Summary and fees for such annual services from year 2 on shall be subject to increases of no more than five percent (5%) year over year for the remainder of the five-year term for each applicable member school district. Annual services fees for Year 1 of the Agreement are not subject to any increase over the previous year's billing for each member school district shown in the Investment Summary.

3. Third Party Products and Hardware. The parties agree and understand that no Third-Party Products or Third-Party Hardware is involved in the modules contemplated by this Agreement as of the Effective Date. If third-party products or hardware are added to the Agreement after the Effective Date, the following provisions apply.

3.1 *Third Party Software License Fees*: License fees for Third Party Software, if any, are invoiced when Tyler makes it available to Client for downloading.

3.2 *Third Party Software Maintenance*: The first year maintenance fee for the Third Party Software, if any, is set forth in the Investment Summary and is invoiced when Tyler makes it available to Client for downloading. Subsequent annual maintenance fees for Third Party Software are invoiced annually, in advance, from year 2 on shall be subject to increases of no more than five percent (5%) year over year for the remainder of the five-year term for each applicable member school district. Third-party software maintenance fees for Year 1 of the Agreement, if any, are not subject to any increase over the previous year's billing for each member school district shown in the Investment Summary.

3.3 *Hardware*: Third Party Hardware costs, if any, are invoiced upon delivery.

3.4 *Hardware Maintenance*: The first year maintenance fee for Hardware is set forth in the Investment Summary and is invoiced upon delivery of the hardware. Subsequent annual maintenance fees for hardware are invoiced annually, in advance, and fees from year 2 on shall be subject to increases of no more than five percent (5%) year over year for the remainder of the five-year term for each applicable member school district. Hardware maintenance fees for Year 1 of the Agreement, if any, are not subject to any increase over the previous year's billing for each member school district shown in the Investment Summary.

3.5 *Third Party Services:* Fees for Third Party Services, if any, are invoiced as delivered, along with applicable expenses, at the rates set forth in the Investment Summary.

4. Expenses. The service rates in the Investment Summary do not include travel expenses. We will not travel to Client's location without coordinating that travel schedule with Client. Expenses for Tyler delivered services will be billed as incurred and only in accordance with Tyler's then-current Business Travel Policy; provided, however, that we will not bill more expenses for travel than would be incurred under the County's travel policy as provided to Tyler on July 25, 2024. Copies of receipts will be provided upon request; Tyler reserves the right to charge Client an administrative fee depending on the extent of Client's requests. Receipts for miscellaneous items less than twenty-five dollars and mileage logs are not available.

Payment. Payment for undisputed invoices is due within forty-five (45) days of the invoice date. Tyler prefers to receive payments electronically. Tyler's electronic payment information is available by contacting AR@tylertech.com.

Exhibit C
Schedule 1
Business Travel Policy

1. Air Travel

   A. Reservations & Tickets

   The Travel Management Company (TMC) used by Tyler will provide an employee with a direct flight within two hours before or after the requested departure time, assuming that flight does not add more than three hours to the employee's total trip duration and the fare is within $100 (each way) of the lowest logical fare. If a net savings of $200 or more (each way) is possible through a connecting flight that is within two hours before or after the requested departure time and that does not add more than three hours to the employee's total trip duration, the connecting flight should be accepted.

   Employees are encouraged to make advanced reservations to take full advantage of discount opportunities. Employees should use all reasonable efforts to make travel arrangements at least two (2) weeks in advance of commitments. A seven (7) day advance booking requirement is mandatory. When booking less than seven (7) days in advance, management approval will be required.

   Except in the case of international travel where a segment of continuous air travel is six (6) or more consecutive hours in length, only economy or coach class seating is reimbursable. Employees shall not be reimbursed for "Basic Economy Fares" because these fares are non-refundable and have many restrictions that outweigh the cost-savings.

   B. Baggage Fees

   Reimbursement of personal baggage charges are based on trip duration as follows:

   - Up to five (5) days = one (1) checked bag
   - Six (6) or more days = two (2) checked bags

   Baggage fees for sports equipment are not reimbursable.

2. Ground Transportation

   A. Private Automobile

   Mileage Allowance – Business use of an employee's private automobile will be reimbursed at the current IRS allowable rate, plus out of pocket costs for tolls and parking. Mileage will be calculated by using the employee's office as the starting and ending point, in compliance with IRS regulations. Employees who have been designated a home office should calculate miles from their home.

B. Rental Car

Employees are authorized to rent cars only in conjunction with air travel when cost, convenience, and the specific situation reasonably require their use. When renting a car for Tyler business, employees should select a “mid-size” or “intermediate” car. “Full” size cars may be rented when three or more employees are traveling together. Tyler carries leased vehicle coverage for business car rentals; except for employees traveling to Alaska and internationally (excluding Canada), additional insurance on the rental agreement should be declined.

C. Public Transportation

Taxi or airport limousine services may be considered when traveling in and around cities or to and from airports when less expensive means of transportation are unavailable or impractical. The actual fare plus a reasonable tip (15-18%) are reimbursable. In the case of a free hotel shuttle to the airport, tips are included in the per diem rates and will not be reimbursed separately.

D. Parking & Tolls

When parking at the airport, employees must use longer term parking areas that are measured in days as opposed to hours. Park and fly options located near some airports may also be used. For extended trips that would result in excessive parking charges, public transportation to/from the airport should be considered. Tolls will be reimbursed when receipts are presented.

3. Lodging

Tyler’s TMC will select hotel chains that are well established, reasonable in price, and conveniently located in relation to the traveler's work assignment. Typical hotel chains include Courtyard, Fairfield Inn, Hampton Inn, and Holiday Inn Express. If the employee has a discount rate with a local hotel, the hotel reservation should note that discount and the employee should confirm the lower rate with the hotel upon arrival. Employee memberships in travel clubs such as AAA should be noted in their travel profiles so that the employee can take advantage of any lower club rates.

“No shows” or cancellation fees are not reimbursable if the employee does not comply with the hotel’s cancellation policy.

Tips for maids and other hotel staff are included in the per diem rate and are not reimbursed separately.

Employees are not authorized to reserve non-traditional short-term lodging, such as Airbnb, VRBO, and HomeAway. Employees who elect to make such reservations shall not be reimbursed.

4. Meals and Incidental Expenses

Employee meals and incidental expenses while on travel status within the continental U.S. are in accordance with the federal per diem rates published by the General Services Administration.

Incidental expenses include tips to maids, hotel staff, and shuttle drivers and other minor travel expenses. Per diem rates are available at www.gsa.gov/perdiem.

Per diem for Alaska, Hawaii, U.S. protectorates and international destinations are provided separately by the Department of State and will be determined as required.

A. Overnight Travel

For each full day of travel, all three meals are reimbursable. Per diems on the first and last day of a trip are governed as set forth below.

Departure Day

Depart before 12:00 noon	Lunch and dinner
Depart after 12:00 noon	Dinner

Return Day

Return before 12:00 noon	Breakfast
Return between 12:00 noon & 7:00 p.m.	Breakfast and lunch
Return after 7:00 p.m.*	Breakfast, lunch and dinner

*7:00 p.m. is defined as direct travel time and does not include time taken to stop for dinner.

The reimbursement rates for individual meals are calculated as a percentage of the full day per diem as follows:

Breakfast	15%
Lunch	25%
Dinner	60%

B. Same Day Travel

Employees traveling at least 100 miles to a site and returning in the same day are eligible to claim lunch on an expense report. Employees on same day travel status are eligible to claim dinner in the event they return home after 7:00 p.m.*

*7:00 p.m. is defined as direct travel time and does not include time taken to stop for dinner.

5. Internet Access – Hotels and Airports

Employees who travel may need to access their e-mail at night. Many hotels provide free high speed internet access and Tyler employees are encouraged to use such hotels whenever possible. If an employee's hotel charges for internet access it is reimbursable up to $10.00 per day. Charges for internet access at airports are not reimbursable.

Exhibit D
Maintenance and Support Agreement

Tyler will provide Client with the following maintenance and support services for the Tyler Software. Capitalized terms not otherwise defined will have the meaning assigned to such terms in the Agreement.

1. Term. Tyler provides maintenance and support services on an annual basis. The initial term commences on the Effective Date and remains in effect for five (5) years.

2. Maintenance and Support Fees. Client's year 1 maintenance and support fees for the Tyler Software are listed in the Investment Summary, and Client's payment obligations are set forth in the Invoicing and Payment Policy. Tyler reserves the right to suspend maintenance and support services if Client fails to pay undisputed maintenance and support fees within thirty (30) days of Tyler's written notice. Tyler will reinstate maintenance and support services only if Client pays all past due maintenance and support fees, including all fees for the periods during which services were suspended.

3. Maintenance and Support Services. As long as Client is not using the Tyler Help Desk as a substitute for Tyler training services on the Tyler Software, and Client timely pays Client's maintenance and support fees, Tyler will, consistent with Tyler's then-current Support Call Process:

   3.1 perform Tyler maintenance and support obligations in a professional, good, and workmanlike manner, consistent with industry standards, to resolve Defects in the Tyler Software (limited to the then-current version and the immediately prior version); provided, however, that if Client modifies the Tyler Software without Tyler's consent, Tyler's obligation to provide maintenance and support services on and warrant the Tyler Software will be void;

   3.2 provide telephone support during Tyler established support hours;

   3.3 maintain personnel that are sufficiently trained to be familiar with the Tyler Software and Third Party Software, if any, in order to provide maintenance and support services;

   3.4 provide Client with a copy of all major and minor releases to the Tyler Software (including updates and enhancements) that Tyler makes generally available without additional charge to customers who have a maintenance and support agreement in effect; and

   3.5 provide non-Defect resolution support of prior releases of the Tyler Software in accordance with Tyler's then-current release life cycle policy.

4. Client Responsibilities. Tyler will use all reasonable efforts to perform any maintenance and support services remotely. Currently, Tyler uses a third-party secure unattended connectivity tool called Bomgar, as well as GotoAssist by Citrix. Therefore, Client agrees to maintain a high-speed internet connection capable of connecting Tyler to Client's PCs and server(s). Client agrees to provide Tyler with a login account and local administrative privileges as Tyler may reasonably require to perform remote services. Tyler will, at Tyler's option, use the secure connection to assist with proper diagnosis and resolution, subject to any reasonably applicable security protocols. If Tyler cannot resolve a support issue remotely, Tyler may be required to provide onsite services. In such event, Tyler will be responsible for Tyler's travel expenses, unless it is determined that the reason onsite

support was required was a reason outside Tyler's control. Either way, Client agrees to provide Tyler with full and free access to the Tyler Software, working space, adequate facilities within a reasonable distance from the equipment, and use of machines, attachments, features, or other equipment reasonably necessary for Tyler to provide the maintenance and support services, all at no charge to Tyler. Tyler strongly recommends that Client also maintain a VPN for backup connectivity purposes.

5. Hardware and Other Systems. If Client is a self-hosted customer and, in the process of diagnosing a software support issue, it is discovered that one of Client' peripheral systems or other software is the cause of the issue, Tyler will notify Client so that Client may contact the support agency for that peripheral system. Tyler cannot support or maintain Third Party Products except as expressly set forth in the Agreement.

   In order for Tyler to provide the highest level of software support, Client bears the following responsibility related to hardware and software:

   (a) All infrastructure executing Tyler Software shall be managed by Client;
   (b) Client will maintain support contracts for all non-Tyler software associated with Tyler Software (including operating systems and database management systems, but excluding Third-Party Software, if any); and
   (c) Client will perform daily database backups and verify that those backups are successful.

6. Other Excluded Services. Maintenance and support fees do not include fees for the following services: (a) initial installation or implementation of the Tyler Software; (b) onsite maintenance and support (unless Tyler cannot remotely correct a Defect in the Tyler Software, as set forth above); (c) application design; (d) other consulting services; (e) maintenance and support of an operating system or hardware, unless Client is a hosted customer; (f) support outside Tyler normal business hours as listed in Tyler's then-current Support Call Process; or (g) installation, training services, or third party product costs related to a new release. Requested maintenance and support services such as those outlined in this section will be billed to Client on a time and materials basis at Tyler's then current rates. Client must request those services with at least one (1) week's advance notice.

7. Current Support Call Process. Tyler's current Support Call Process for the Tyler Software is attached to this Exhibit D at Schedule 1.

Exhibit D
Schedule 1
Support Call Process

Support Channels

Tyler Technologies, Inc. provides the following channels of software support for authorized users*:

(1) On-line submission (portal) – for less urgent and functionality-based questions, users may create support incidents through the Tyler Customer Portal available at the Tyler Technologies website. A built-in Answer Panel provides users with resolutions to most "how-to" and configuration-based questions through a simplified search interface with machine learning, potentially eliminating the need to submit the support case.
(2) Email – for less urgent situations, users may submit emails directly to the software support group.
(3) Telephone – for urgent or complex questions, users receive toll-free, telephone software support.

** Channel availability may be limited for certain applications.*

Support Resources

A number of additional resources are available to provide a comprehensive and complete support experience:

(1) Tyler Website – www.tylertech.com – for accessing client tools, documentation, and other information including support contact information.
(2) Tyler Search – a knowledge based search engine that lets clients search multiple sources simultaneously to find the answers clients need, 24x7.
(3) Tyler Community – provides a venue for all Tyler clients with current maintenance agreements to collaborate with one another, share best practices and resources, and access documentation.
(4) Tyler University – online training courses on Tyler products.

Support Availability

Tyler Technologies support is available during the local business hours of 8 AM to 5 PM (Monday – Friday) across four US time zones (Pacific, Mountain, Central and Eastern). Tyler's holiday schedule is outlined below. There will be no support coverage on these days.

New Year's Day	Labor Day
Martin Luther King, Jr. Day	Thanksgiving Day
Memorial Day	Day after Thanksgiving
Independence Day	Christmas Day

For support teams that provide after-hours service, Tyler will provide Client with procedures for contacting support staff after normal business hours for reporting Priority Level 1 Defects only. Upon receipt of such a Defect notification, Tyler will use commercially reasonable efforts to meet the resolution targets set forth below.

We will also make commercially reasonable efforts to be available for one pre-scheduled Saturday of each month to assist Client's IT staff with applying patches and release upgrades, as well as consulting with them on server maintenance and configuration of the Tyler Software environment.

Incident Handling

Incident Tracking

Every support incident is logged into Tyler's Customer Relationship Management System and given a unique case number. This system tracks the history of each incident. The case number is used to track and reference open issues when clients contact support. Clients may track incidents, using the case number, through Tyler's Customer Portal or by calling software support directly.

Incident Priority

Each incident is assigned a priority level, which corresponds to the Client's needs. Tyler and the Client will reasonably set the priority of the incident per the chart below. This chart is not intended to address every type of support incident, and certain "characteristics" may or may not apply depending on whether the Tyler software has been deployed on customer infrastructure or the Tyler cloud. The goal is to help guide the Client towards clearly understanding and communicating the importance of the issue and to describe generally expected response and resolution targets in the production environment only.

References to a "confirmed support incident" mean that Tyler and the Client have successfully validated the reported Defect/support incident.

Priority Level	Characteristics of Support Incident	Resolution Targets*
1 Critical	Support incident that causes (a) complete application failure or application unavailability; (b) application failure or unavailability in one or more of the client's remote location; or (c) systemic loss of multiple essential system functions.	Tyler shall provide an initial response to Priority Level 1 incidents within one (1) business hour of receipt of the incident. Once the incident has been confirmed, Tyler shall use commercially reasonable efforts to resolve such support incidents or provide a circumvention procedure within one (1) business day. For non-hosted customers, Tyler's responsibility for lost or corrupted data is limited to assisting the Client in restoring its last available database.
2 High	Support incident that causes (a) repeated, consistent failure of essential functionality affecting more than one user or (b) loss or corruption of data.	Tyler shall provide an initial response to Priority Level 2 incidents within four (4) business hours of receipt of the incident. Once the incident has been confirmed, Tyler shall use commercially reasonable efforts to resolve such support incidents or provide a circumvention procedure within ten (10) business days. For non-hosted customers, Tyler's responsibility for loss or corrupted data is limited to assisting the Client in restoring its last available database.

Priority Level	Characteristics of Support Incident	Resolution Targets*
3 Medium	Priority Level 1 incident with an existing circumvention procedure, or a Priority Level 2 incident that affects only one user or for which there is an existing circumvention procedure.	Tyler shall provide an initial response to Priority Level 3 incidents within one (1) business day of receipt of the incident. Once the incident has been confirmed, Tyler shall use commercially reasonable efforts to resolve such support incidents without the need for a circumvention procedure with the next published maintenance update or service pack, which shall occur at least quarterly. For non-hosted customers, Tyler's responsibility for lost or corrupted data is limited to assisting the Client in restoring its last available database.
4 Non-critical	Support incident that causes failure of non-essential functionality or a cosmetic or other issue that does not qualify as any other Priority Level.	Tyler shall provide an initial response to Priority Level 4 incidents within two (2) business days of receipt of the incident. Once the incident has been confirmed, Tyler shall use commercially reasonable efforts to resolve such support incidents, as well as cosmetic issues, with a future version release.

**Response and Resolution Targets may differ by product or business need*

Incident Escalation

If Tyler is unable to resolve any priority level 1 or 2 defect as listed above or the priority of an issue has elevated since initiation, Client may escalate the incident to the appropriate resource, as outlined by each product support team. The corresponding resource will meet with Client and any Tyler staff to establish a mutually agreeable plan for addressing the defect.

Remote Support Tool

Some support calls may require further analysis of the Client's database, processes, or setup to diagnose a problem or to assist with a question. Tyler will, at its discretion, use an industry-standard remote support tool. Tyler's support team must have the ability to quickly connect to the Client's system and view the site's setup, diagnose problems, or assist with screen navigation. More information about the remote support tool Tyler uses is available upon request.

MARICOPA COUNTY REGIONAL SCHOOL DISTRICT

MCRSD
Personnel Update
January & February 2025

Position Change:

Name	Old Position	New Position	Effective
Tatum Slate	Reach Associate	Teacher	01/20/2025

New Hire:

Name	Position	Effective
Alex Fierro	Reach Associate	01/27/2025

Resignation:

Name	Position	Effective
Lane Mann	Principal - Detention	02/26/2025

800 W. Adams St.
Phoenix, AZ 85007

www.mcrsd.org
602-875-5265

MARICOPA COUNTY
REGIONAL SCHOOL DISTRICT

Lane Mann
Principal
Maricopa County Educational Center
3131 W Durango St.
Phoenix, AZ, 85009

Resignation Letter – Principal, Maricopa County Regional School District

Dear Superintendent Boggs,

I am writing to formally submit my resignation as Principal of Durango under the Maricopa County Regional School District, with my anticipated last day being February 26th, pending your approval. This decision was not made lightly, as the past six years serving our students, staff, and community have been some of the most meaningful and rewarding of my career. It has been an honor to work alongside such dedicated educators and professionals who share a deep commitment to transforming the lives of our students. Together, we have built strong relationships, created impactful learning experiences, and provided essential support to some of the most resilient young people in Maricopa County. I am incredibly proud of what we have accomplished as a team, and I will always be grateful for the opportunity to lead and serve in this capacity.

I have recently accepted the position of Executive Director of Technology Services at Liberty District #25, where I look forward to continuing my mission of ensuring that students and educators have access to the tools and resources they need to succeed. While I am excited about this new chapter, I will deeply miss the incredible colleagues and students I have had the privilege to serve.

Thank you for your leadership and support. I am happy to assist in the transition in any way I can to ensure a smooth handover. Please let me know how I can be of help in the coming weeks.
With deep appreciation,

Lane Mann

Maricopa County Regional School District
Summary of Operation (Unaudited)
FY2025 - February 2025

Budget-Controlled		Budget (Adopted/Allocated)	YTD Expenses	Balance	Encumbrances	Budget Balance
001	Maintenance & Operation	$ 3,235,696.00	$ 3,277,124.00	$ (41,428.00)	$ 731,587.00	$ (773,015.00)
010	Classroom Site Fund	$ 1,736,919.00	$ 198,690.00	$ 1,538,229.00	$ 260,998.00	$ 1,277,231.00
610	Unrestricted Capital Outlay	$ 68,000.00	$ 5,919.00	$ 62,081.00	$ 7,161.00	$ 54,920.00
050	Teacher Powered Grant	$ -	$ -	$ -	$ -	$ -
100-139	Title I	$ 273,132.00	$ 366,735.00	$ (93,603.00)	$ 107,340.00	$ (200,943.00)
140-149	Title II Improving Instruction	$ 3,048.00	$ 2,504.00	$ 544.00	$ -	$ 544.00
160-169	Title IV Student Support	$ 20,830.00	$ -	$ 20,830.00	$ -	$ 20,830.00
190-199	Title III	$ -	$ -	$ -	$ -	$ -
22?	IDEA/SPED Grants	$ 126,615.00	$ 73,513.00	$ 53,102.00	$ 65,754.00	$ (12,652.00)
300-399	Other Federal Grants	$ 300,000.00	$ 79,371.00	$ 220,629.00	$ -	$ 220,629.00
400-499	Other State Grants	$ -	$ -	$ -	$ -	$ -
Cash-Controlled		**Beginning CB**	**YTD Revenues**	**YTD Expenditures**	**Encumbrances**	**Current Cash Balance**
020	Instructional Improvement	$ 140,028.00	$ 1,831.00	$ -	$ -	$ 141,859.00
290	Medicaid Reimbursement	$ -	$ (461.00)	$ -	$ -	$ (461.00)
374	E-rate	$ 42,672.00	$ 10,790.00	$ 19,057.00	$ 26,575.00	$ 34,405.00
500-506	School Plant Funds	$ 1,585,439.00	$ 55,494.00	$ -	$ -	$ 1,640,933.00
510	Food Service	$ 268.00	$ 1,551.00	$ -	$ -	$ 1,819.00
515	Civic Center	$ 693.00	$ 10.00	$ -	$ -	$ 703.00
520	Community School	$ -	$ 1,831.00	$ -	$ -	$ 1,831.00
525	Auxillary Operations	$ 1,606.00	$ 23.00	$ -	$ -	$ 1,629.00
526	Extracurricular Activities	$ 11,623.00	$ 1,831.00	$ 266.00	$ -	$ 13,188.00
530	Gifts and Donations	$ 394,440.00	$ 807.00	$ 97,009.00	$ 5,744.00	$ 298,238.00
565	Litigation Recovery	$ 545.00	$ 1,831.00	$ -	$ -	$ 2,376.00
570	Indirect Costs	$ 41,416.00	$ 1,831.00	$ -	$ -	$ 43,247.00
585	Insurance Refund	$ 26,632.00	$ 1,831.00	$ -	$ -	$ 28,463.00
691	(SFD) Building Renewal Grant	$ -	$ -	$ -	$ -	$ -

Expenses reflect Hope and Detention; FY25 budget only based on Hope

based on adopted budget with lower DRP ADM; revision will reflect increase; secure care ADM not correctly syncing yet

additional $134,227.24 in secure care IDEA

MC RSD

Instructional Update

January 2025

Hope





Highlights

- Project Runway
  - *Students created their own brands including stories that inspired their brand, logos, signature prints, business plan, and website*
  - *Students repurposed old articles of clothing into designs that fit into their brand*
- Upcoming symposium
  - *April 30th from 4-6pm*





Maricopa County Education Center

Highlights

- Book club starting for a group of students
- Future idea
  - *Computer science club*
- Reach Associate received her CTE teaching certificate

